

court days prior to the hearing and five calendar days are added for mail within the State of California. CCP § 1005(b). Defendants filed an Opposition on June 29, 2026, which is untimely. However, as service was late, the late Opposition is excused and will be considered.

CCP § 473(a)(1) permits any pleading to be amended in further of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." *Morgan v. Sup.Ct.* (1959) 172 Cal. App. 2d 527, 530. In general the Court should not concern itself with the validity of the proposed amendment in the motion for leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048. The validity of the amendment can be challenged by a subsequent demurrer, motion for judgment on the pleadings, or other appropriate proceeding. *Id.*

Delay alone is not sufficient grounds to deny a motion to amend, absent prejudice to the opposing party. *Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761. Prejudice exists, however, where the amendment would result in a delay of trial, loss of evidence, added preparation costs, additional discovery, or other costs. The weight of the prejudices is increased where there is no explanation for the delay in amending. *See, e.g., Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488; *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649. Defendants presented no evidence of prejudice.

In addition to the merits of a motion, the Court must consider whether proper procedure was followed. CRC 3.1324(a)(2) and (3) require the moving party to state what allegations in the previous pleading are to be added or deleted and state where, by page, paragraph, and line number the deletions and additional allegations. A supporting declaration is required that contains all the information set forth in CRC 3.1324(b). Plaintiff did not follow CRC 3.1324 as the changes are not specified in sufficient detail and the declaration does not fully address each factor set forth in CRC 3.1324(b).

The motion is **DENIED** without prejudice for not complying with CRC 3.1324. Defendants' request for sanctions is **DENIED**. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling. Should Plaintiff elect to correct the defects and file for leave again complying with CRC 3.1324, Plaintiff is reminded to timely serve the motion per CCP § 1005(b) and to file a proof of service.

FASSBINDER, ET AL. VS. PG&E CORPORATION, ET AL.

CASE NUMBER: CVCV21-0198186

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiffs' counsel and Defendants' counsel for failure to provide the Court with status of the JCCP action. The matter was on calendar on May 11, 2026 and the tentative ruling required an appearance because neither party had filed a status statement. Neither party appeared, therefore, no status was provided. Plaintiffs have since filed a status statement informing the Court that a request for dismissal with prejudice will be filed shortly in the JCCP and counsel's intent is to do the same in this court. The Order to Show Cause is **DISCHARGED**. The matter is on calendar today at 9:00 a.m. for status.

HALL VS. LICKLITER, ET AL.

CASE NUMBER: 26CV-0210067

Tentative Ruling on Motion to Quash Service of Summons: Defendant Jacob Lickliter moves to quash service of summons. Plaintiff Lisa Hall opposes the motion.

Plaintiff filed Proof of Service of Summons on May 7, 2026 indicating that Defendant was served by personal service on May 5, 2026 at 5:34 p.m. with the note “I delivered the documents to Jacob Lickliter with identity confirmed by subject stating yes when named. The individual accepted service with direct delivery. The individual appeared to be a white male contact 45-55 years of age, 6’0”-6’2” tall and weighting 200-240 lbs.” Service was accomplished by Kristie Butler who checked Item 7.e.(1) indicating that she is not a registered California process server. The Proof of Service of Summons was signed under penalty of perjury on May 5, 2026 and complies with CCP § 2015.5.

In the moving papers, Defendant argues that he was not home at the alleged time of service and that the documents were actually served on his wife. This is not provided in his declaration. Instead, Defendant provides that he “was not served in the matter described in the Proof of Service.” *Defendant Decl.* ¶ 6. Defendant does not state how or when he received the papers. His declaration focuses on his employment with Corinth Coca-Cola Bottling Group and the Motus Application. A screenshot of his Motus Application is provided that Defendant asserts provides a portion of his afternoon on May 5, 2026 and shows that he did not arrive home from work until 6:00 p.m.

In the Reply, Defendant provided an email from counsel that attaches an email that counsel asserts is from Defendant’s supervisor. While the general rule is that evidence should not be submitted with a Reply, the Court has discretion to consider evidence submitted with a Reply so long as the opposing party is provided notice and an opportunity to be heard. *Los Angeles Unified School Dist. v. Torres Construction Corp.* (2020) 57 Cal. App. 5th 480, 499. In this instance, the Court considers the evidence, but does not admit it. This email is hearsay with no exception. There is no declaration provided by the supervisor.

Plaintiff argues that the presumption in Evid. Code § 647 applies. “The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” Evid. Code § 647. Kristie Butler indicated that she is not a process server in California. The presumption in Evid. Code § 647 does not apply.

The competent evidence before the Court is the Proof of Service of Summons and Defendant’s Declaration. The Court does not find that the screenshot from the Motus Application has been properly authenticated. Even if it were, the timeframe at issue is less than thirty minutes. Defendant provided no evidence of how he received the papers and makes no mention of his wife in his declaration. Defendant did not provide a declaration from his wife. When balancing this against the statements in the Proof of Service of Summons, the Court finds that Defendant has not met his burden. Defendant has been properly served.

The Motion to Quash Service of Summons is **DENIED**. Defendant provided a proposed order that will be modified to reflect the Court’s ruling.

IN RE J.G. WENTWORTH ORIGINATIONS, LLC

CASE NUMBER: 26CV-0209619

Tentative Ruling on Petition for Approval for Transfer of Payment Rights: Petitioner J.G. Wentworth Originations, LLC seeks an order approving transfer of payment rights pursuant to California Insurance Code § 10134 et seq. Real Party in Interest/Transferor is Jerry Whipp. The operative petition is the Second Amended Petition filed on June 15, 2026.

Ins. Code § 10139.5(f)(2) requires notice of the proposed transfer and the application for its authorization must be served on all interested parties not less than 20 days prior to the scheduled hearing. The statute further requires